

Planning Commission Minutes of the Proceedings - Final

Historic Courthouse
310 W 19th Street
Cheyenne, WY 82001

Laramie County Planning Commission
Prepared by the Laramie County Planning & Development Office
Laramie County, Wyoming

Thursday, February 22, 2024

3:30 PM

Commissioners Board Room

Call To Order

Chairman Caughey called the meeting to order at 3:30 p.m. with all members present. Guests were welcomed to the meeting and the assembly joined in the Pledge of Allegiance.

Roll Call

Present

Jason Caughey, Jack Stadel, John Watkins,
Natacha Gaspar, Mark Smith

Approval of Minutes

1. Consideration of the Minutes of Proceedings for February 8, 2024.

[24 - 082](#)

Attachments: [PC 2.8.24 Draft](#)

A motion was made by John Watkins, seconded by Jack Stadel to approve the Minutes of the Proceedings for February 8, 2024. Vote 5-0.

Aye: Caughey, Stadel, Watkins, Gaspar, Smith

Land Use: Variances/Board App./Plats

2. Public Hearing regarding a Zone Change and Administrative Plat for a parcel in the NW 1/4 of Section 10, Township 14 North, Range 66 West, 6th P.M., Laramie County, WY.

[24 - 083](#)

Attachments: [PZ-23-00105 PC 2.22.24 Meeting Packet](#)

Cate Cundall, Associate Planner, said that Y2 Consultants on behalf of Lois Elaine Adams, submitted Zone Change and Administrative Plat applications for Adams Homestead, consisting of two tracts located at 8811 Ridge Road. The applications have been submitted to request a zone change from A1 to AR and to replat the subject property into a 33.42 acre vacant residential parcel and a 5.30 acre parcel that includes the existing residence. The Administrative Plat is provided for information only since it will be approved administratively. The only action taken today will be for the Zone Change.

Lois Elaine Adams owns the 39.77 acre unplatted parcel and wishes to break off the existing residence into a 5.30 acre tract and retain the remainder in one larger tract.

The Zone Change to AR allows for a minimum tract size of 5 acres and is necessary to meet the proposed 5.30 acre parcel size.

Maxwell Waite, Project Agent and Kendall Adams, Owner Representative, were introduced and available to answer any questions.

Based on evidence provided for the zone change request, staff recommends the Planning Commission find that:

- a. This application meets the criteria for a zone change amendment pursuant to section 1-2-103(b) of the Laramie County Land Use Regulations.
 - b. The proposed change in zone district is in conformance with the requirements of section 4-2-100 of the Laramie County Land Use Regulations.
- and that the Planning Commission may recommend approval of a Zone Change from A1 to AR for a parcel in the NW 1/4 of Section 10, Township 14 North, Range 66 West, to the Laramie County Board of Commissioners, and adopt the findings of facts a and b for the zone change, as shown in the staff report.

Chairman Caughey opened the hearing for Public Comments on the Lois Elaine Adams Zone Change.

Comments were heard from:

Brent Kindsvater - 8512 Ridge Road - Concerns that the water level has declined and what impacts this planning action would have on the surrounding wells.

Gail Sundell - 5911 Ridge Road - Concerns on the water table and how this would affect the neighbors wells and that the subject property is located in a Floodplain.

Hearing no further comments Chairman Caughey closed the hearing and called for a motion and discussion.

A motion was made by John Watkins and seconded by Mark Smith to recommend approval of the zone change from A-1 to AR for a parcel in the NW 1/4 of Section 10, Township 14 North, Range 66 West, 6th P.M., to the Laramie County Board of Commissioners, with no conditions and adopt the findings of fact a and b of the staff report. Vote 5-0.

Aye: Caughey, Stadel, Watkins, Gaspar, Smith

3. Public Hearing regarding a Zone Change from A-1 - Agricultural and Rural Residential to AR - Agricultural Residential for a parcel in the NW 1/4 of Section 10, Township 14 North, Range 66 West, 6th P.M., Laramie County, WY.

[24 - 084](#)

Attachments: [PZ-23-00107 PC 2.22.24 Meeting Packet](#)

Cate Cundall, Associate Planner, said that Y2 Consultants on behalf of Charles Kendall and Carina Nicole Adams, submitted an application for a Zone Change from

A-1 to AR for 8611 Ridge Road. This is a 10.07 acre parcel with one residence. The property is bordered by AR and A-1 zone districts and adjoining developments lot sizes average between 3 to 10 acres. Maxwell Waite and Kendall Adams were present to answer any questions.

Staff recommended that the commission find that:

- a. This application meets the requirements of section 1-2-103(b) of the Laramie County Land Use Regulations for a zone map amendment.
 - b. The proposed change in zone district is in conformance with the requirements of section 4-2-100 of the Laramie County Land Use Regulations.
- and that the Planning Commission may recommend approval to the Laramie County Board of County Commissioner with no conditions.

Chairman Caughey opened the hearing for Public Comments on the Zone Change. Hearing no comments the hearing was closed and Chairman Caughey called for a motion and discussion.

A motion was made by Mark Smith and seconded by Jack Stadel to recommend approval of the zone change from A-1 to AR for a parcel in the NW 1/4 of Section 10, Township 14 North, Range 66 West, 7th P.M., to the Laramie County Board of Commissioners, with no conditions and adopt the findings of fact a and b of the staff report. Vote 5-0.

Aye: Caughey, Stadel, Watkins, Gaspar, Smith

4. Public Hearing on a Zone Change from LU - Land Use to PUD - Planned Unit Development for Tracts 1 to 4, Terry Ranch Business Park and Lot 1, Block 1, Terry Park, Laramie County, WY.

24 - 085

Attachments: [PZ-23-000167 PC STAFF REPORT PACKAGE](#)
[02.22.24](#)

Sonny Keen, Associate Planner, said that AVI, PC, on behalf of Swan Ranch, LLC, submitted a Zone Change application for Terry Ranch Business Park and a portion of Terry Park, located at the intersection of Sheep Avenue and State Highway 223. This is a 88.58 acre assessed as commercial vacant land and is bordered by two business parks. The purpose of the application is to change the zone district from LU-Land Use Zone District to PUD-Planned Unit Development and to provide a standard for acceptable uses that are allowed within the Business Park. The PUD will create a zone that allows uses across the Community Business, Light Industrial, and Heavy Industrial use categories.

Brad Emmons, project agent, was present to answer any questions.

Staff recommends the Planning Commission find that:

- a. This application does meet the criteria for a zone map amendment pursuant to section 1-2-103 (b) of the Laramie County Land Use Regulations.
- b. The proposed change in zone district is in conformance with the requirements of

section 4-2-112 of the Laramie County Land Use Regulations and that the Planning Commission may recommend approval to the Laramie County Board of Commissioners with no conditions.

Chairman Caughey opened the hearing for Public Comments. No comments were received and Chairman Caughey closed the hearing and called for a motion and discussion.

A motion was made by John Watkins and seconded by Natacha Gaspar to recommend approval of a Zone Change from LU-Land Use to PUD-Planned Unit Development for Tracts 1-4, Terry Ranch Business Park and Lot 1, Block 1, Terry Park, to the Laramie County Board of Commissioners, with no conditions and adopt the findings of facts a and b of the staff report. Vote 5-0.

Aye: Caughey, Stadel, Watkins, Gaspar, Smith

5. Public Hearing regarding a Subdivision Permit and Plat for Bison Crossing, 11th Filing, situated in the SW 1/4 of Section 30 and the NW 1/4 of Section 31, Township 13 North, Range 66 West, of the 6th P.M., Laramie County, WY.

[24 - 086](#)

Attachments: [PZ-24-00002 LCPC 2.22.24 Meeting Packet](#)

Bryce Hamilton, Associate Planner, said that Lovas Engineering, on behalf of TFS II, submitted a Subdivision Permit and Plat application for Bison Crossing, 11th Filing. The application has been submitted to subdivide approximately 34 acres into twelve residential lots of roughly 2.84 acres each. Water service will be provided by the Winchester Hills Utility Company and individual septic systems will provide sanitary service.

Chris Lovas, Project Agent, and Brent Vizina, owner, were present to answer questions. Mr. Lovas expanded on the history of Bison Crossing. This filing matches the style and lot size of the other filings for Bison Crossing.

The subject property is located in a PUD zone district. Access will be via Sharps Drive and interior lots will be accessed by a publicly dedicated cul-de-sac. The plat will also dedicate a 50' R-O-W for future extension of Parsley Drive.

Staff recommends the Planning Commission find that:

- a. This application is in conformance with section 4-2-112 governing the PUD zone district.
 - b. This application meets the criteria for a subdivision permit and plat pursuant to section 2-1-101 (a-e) of the Laramie County Land Use Regulations.
- and that the Planning Commission recommend approval of a Subdivision Permit and Plat for Bison Crossing, 11th Filing on the condition that:

1. A non-adverse Chapter 23 recommendation is provided by DEQ prior to recordation.

Chairman Caughey opened the hearing for Public Comments. Albert Howard at 1652 Sharps Avenue expressed his concerns on the traffic and asked if Parsley would be built to alleviate construction traffic. Chris Lovas responded that construction of roads will begin but until Parsley is built Sharps Avenue will be used.

Hearing no further comments Chairman Caughey closed the hearing and called for a motion and discussion.

Mark Smith asked if there were fire protection measures included in the proposed subdivision. The project owner responded that there were fire hydrants located in the previous filings and he had donated the property for the fire station located at the corner of Winchester Blvd. and Terry Ranch Road.

A motion was made by John Watkins and seconded by Natacha Gaspar to adopt the findings of fact a and b of the staff report and to recommend approval of the Subdivision Permit and Plat for Bison Crossing, 11th Filling to the Board of County Commissioners with one condition outline in the staff report. Vote 5-0.

Aye: Caughey, Stadel, Watkins, Gaspar, Smith

Adjournment

There being no further business Chairman Caughey adjourned the meeting at 4:12 p.m.

CERTIFICATION

True and correct copy of the Minutes of the Proceedings for Tuesday, February 22, 2024.

Approved by the Laramie County Planning Commission on Tuesday, March 14, 2024.